

IN THE SENATE

SENATE BILL NO. 1242

BY AGRICULTURAL AFFAIRS COMMITTEE

AN ACT

RELATING TO THE IDAHO POTATO COMMISSION; PROVIDING LEGISLATIVE INTENT;  
AMENDING SECTION 22-1204, IDAHO CODE, TO REMOVE AN OUTDATED PROVISION  
REGARDING RULES; REPEALING SECTION 22-1211A, IDAHO CODE, RELATING  
TO REFERENDUM OF CONTINUANCE OF ADDITIONAL TAX; REPEALING SECTION  
22-1215, IDAHO CODE, RELATING TO ACCESS TO RECORDS; AND DECLARING AN  
EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. IDAHO CODE CLEANUP -- LEGISLATIVE INTENT. It is the intent  
of the Legislature to ensure that the state laws provided in Idaho Code are  
streamlined, up-to-date, and essential for the citizens of Idaho, while best  
serving the public health, safety, and welfare. In accordance with the Idaho  
Code Cleanup Act, following comprehensive review, the Legislature has iden-  
tified the provisions of this act as obsolete, outdated, or unnecessary.

SECTION 2. That Section 22-1204, Idaho Code, be, and the same is hereby  
amended to read as follows:

22-1204. DEFINITIONS. As used in this act:

1. The term "commission" means the Idaho potato commission.

2. The term "person" means individual, partnership, corporation, asso-  
ciation, grower and/or any other business unit.

3. The term "potatoes" means and includes only potatoes sold or in-  
tended for human consumption and grown in the state of Idaho.

4. "Shipment" of potatoes shall be deemed to take place when the pota-  
toes are loaded within the state of Idaho, in a car, bulk, truck or other con-  
veyance in which the potatoes are to be transported for sale or otherwise.

5. The term "dealer" means and includes any person engaged in the busi-  
ness of buying, receiving, processing, or selling potatoes for profit or re-  
muneration.

6. The term "shipper" means and includes one who is properly licensed  
under federal and state laws, actively engaged in the packing and shipping of  
potatoes in the primary channel of trade in interstate commerce in the state  
of Idaho, who does not provide the primary management to a growing or pro-  
cessing operation, and who ships more than he produces.

7. The term "grower" means one who is actively engaged in the growing  
of potatoes on five (5) or more acres in the state of Idaho, and who does not  
provide the primary management to a shipping or processing operation.

8. Potatoes shall be deemed to be delivered into the primary channel of  
trade when any such potatoes are sold or delivered for shipment, or delivered  
for canning and/or processing into by-products.

1        9. The term "hundredweight" means each one hundred (100) pound unit or  
2 combination of packages making a one hundred (100) pound unit of any shipment  
3 of potatoes based on invoice and/or bill of lading records.

4        10. The term "processor" means a person who is actively engaged in the  
5 processing of potatoes in the state of Idaho for human consumption.

6        11. The term "processing" means changing the form of potatoes from the  
7 raw or natural state into a product for human consumption.

8        12. The term "handler" means and includes any person processing pota-  
9 toes or handling them in the primary channel of trade.

10       13. The term "tax" means an assessment levied on potatoes covered by  
11 this act for the sole purpose of financing, on behalf of the potato industry  
12 in Idaho, the commission's activities in carrying out the purposes of this  
13 act.

14       ~~Notwithstanding any other provision of law to the contrary, the commis-~~  
15 ~~sion shall not be authorized to promulgate rules relating to the amendments~~  
16 ~~to the definitions of the terms "shipper," "grower," and "processor" as pro-~~  
17 ~~vided for in this act for a period of one (1) year from the effective date of~~  
18 ~~this act.~~

19       SECTION 3. That Section [22-1211A](#), Idaho Code, be, and the same is hereby  
20 repealed.

21       SECTION 4. That Section [22-1215](#), Idaho Code, be, and the same is hereby  
22 repealed.

23       SECTION 5. An emergency existing therefor, which emergency is hereby  
24 declared to exist, this act shall be in full force and effect on and after  
25 July 1, 2026.